

		supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date. 17. The correct address of this Court should be listed in ¶ 13. 18. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court’s website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
114	Coleman vs. Resurgence Behavioral Health LLC a Nevada corporation 2021-01225871	1. Motion for Preliminary Approval of Class and PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions The Court has reviewed the supplemental materials provided by Class Counsel and finds that with a couple of exceptions, they adequately address the previously identified issues. Accordingly, Plaintiff Rebecca Coleman’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONDITIONALLY GRANTED, pending submission of (1) a further amendment to the Settlement Agreement addressing the below identified issue with ¶ 7.4.4; (2) a further declaration from Class Counsel addressing the Class Notice language issue; and (3) a further revised proposed order. This is a putative wage-and-hour class action and PAGA matter. On 10/12/2021, Plaintiff Rebecca Coleman, individually and on behalf of other members of the general public similarly situated (“Plaintiff”), filed a Class Action Complaint against Defendants Resurgence Behavioral Health, LLC; Resurgence California, LLC; A New Start Treatment and Recovery Center, LLC dba Muse Treatment; Advanced Recovery Solution, LLC; Balboa Horizons Recovery Services; and The Well Recovery Partners (together, “Defendants”). The Complaint asserts nine (9) causes of action for various violations of the Labor Code’s wage-and-hour provisions. On 7/3/2023, pursuant to stipulation and order, Plaintiff filed the operative First Amended Class Action Complaint for Damages and Enforcement Under the Private Attorneys General Act (“FAC”) wherein she added causes of action for Violation of Business & Professions Code §§ 17200, et seq., and PAGA penalties. Defendants answered on 8/7/2023. On 11/2/2023, pursuant to stipulation and order,

Defendant The Well Recovery Partners was dismissed from the action without prejudice.

The parties attended mediation on 3/4/2024, and negotiated a complete settlement of the claims. On 8/1/2024, Plaintiff filed a Notice of Settlement of the action. On 6/13/2025, Plaintiff filed the current Motion for Preliminary Approval of Class Action and PAGA Settlement and submitted the Class Action and PAGA Settlement Agreement (“Settlement Agreement”) and Class Notice for the Court’s review. The Motion seeks preliminary approval of the parties’ proposed settlement for the non-reversionary Gross Settlement Amount of One Million Dollars (\$1,000,000.00).

On 9/11/2025, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #124.) On 11/3/2025, the parties filed a stipulation to continue the 11/6/2025 hearing to 12/4/2025. (ROA #130.) On 12/16/2025, the Court issued a minute order noting that supplemental papers addressing the Court’s concerns had not been filed as required. (ROA #134.) The Court then issued an updated minute order nunc pro tunc on 12/23/2025. (ROA #139.) The Court continued the preliminary approval hearing to 2/26/2026 and also set an OSC re Monetary Sanctions against Class Counsel for failure to comply with the Court’s prior orders to file supplemental papers in advance of the continued hearing. (*Id.*)

On 2/9/2026, Class Counsel filed a declaration in response to the OSC. (ROA #142.) Counsel apologized for the failure to file supplemental briefing and attested to acting diligently and in good faith to repeatedly seek from Defendants information necessary to complete the required supplemental filings, but Defendants had failed to provide the necessary information. (*Id.*)

On 2/26/2026, the Court ordered defense counsel to provide Plaintiff’s counsel with the information required to amend the supplemental papers by 3/6/2026 and continued the hearing on the instant motion and the OSC to 5/14/2026. (ROA #145.)

On 3/16/2026, Plaintiff’s counsel submitted supplemental materials, including an Amendment No. 1 to the Class Action and PAGA Settlement Agreement and Class Notice (“Amendment No. 1”).

Based on a review of all papers submitted, including the Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

However, within ten (10) court days, Class Counsel must submit a further amendment to the Settlement Agreement that addresses the following issue:

In the Court’s previous 9/11/2025 minute order, the Court noted that “[i]n the Settlement Agreement, the Response Deadline for the submission of Requests for Exclusion, objections, and workweek disputes after the remailing of any Class Notices should be at least thirty (30) days.” (ROA #124.) Although Amendment No. 1 amends ¶ 1.43 of the Settlement Agreement, ¶ 1.43 addresses only the deadline for requests for exclusion and objections. Paragraph 7.4.4 of the Settlement Agreement states: “The deadlines for Class Members’ written objections, *Challenges to Workweeks and/or Pay Periods* and Requests for

Exclusion will be extended an additional fourteen (14) calendar days beyond the forty-five (45) calendar days otherwise provided in the Class Notice for all Class Members whose notice is remailed.” (Emphasis added.) Amendment No. 1 does not amend ¶ 7.4.4 of the Settlement Agreement to provide 30 days—rather than 14 days—to Class Members whose Class Notice is remailed to respond with their workweek/pay period disputes. Therefore, a further amendment to the Settlement Agreement is required to appropriately amend ¶ 7.4.4.

Additionally, within ten (10) court days, Class Counsel must submit a supplemental declaration to address the following issue: Class Counsel’s 3/16/2026 supplemental declaration attests that “[o]n November 18, 2025, Counsel for Defendants confirmed that the Class Notice will not need to be translated to any language other than English.” (ROA #152, ¶ 11.) However, neither counsel has explained why English-only is appropriate. For example, do all Class Members speak English?

Furthermore, within ten (10) court days, Class Counsel must submit a further revised Proposed Order with the following corrections and revisions:

1. Although the revised proposed order submitted at ROA #146 lists the ROA number for the declaration attaching the original Settlement Agreement, the ROA number for the declaration attaching Amendment No. 1 is not listed. Additionally, to the extent a further amendment to the Settlement Agreement must be executed to address the Court’s concern with ¶ 7.4.4 of the Settlement Agreement, the ROA number of the declaration attaching that further amendment must also be included in a further revised proposed order.
2. In light of the further continuance of the instant motion for preliminary approval, Class Counsel should propose a new, realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys’ fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff’s declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.

Upon submission of these materials, along with proof of service of all supplemental papers upon the LWDA, the Court will grant the Motion.

The Motion for Final Approval will be set in accordance with the Court’s Order Granting Preliminary Approval of Class Action Settlement after Class Counsel proposes a new realistic date as explained above. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation.

Finally, the Court finds that Class Counsel has provided substantial justification for failure to comply with the Court's prior orders. Therefore, the Court **VACATES** and **DISCHARGES** the OSC re Monetary Sanctions Against Class Counsel.

Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service.